

MUTUAL NON-DISCLOSURE AGREEMENT

AEGIS API Security Gateway

This is a template for internal use, not a document ready for signature. Bracketed fields must be completed, and the agreement reviewed by qualified counsel, before execution — particularly the governing-law, penalty provisions in Article 5, and the governing-law provision in Article 6.

This Mutual Non-Disclosure Agreement (this "**Agreement**") is entered into as of [DATE] (the "**Effective Date**") by and between:

[AEGIS legal entity name], a company organized under the laws of [jurisdiction], with its principal place of business at [address] and registration number [number] ("**AEGIS**"); and

[Counterparty legal entity name], a company organized under the laws of [jurisdiction], with its principal place of business at [address] and registration number [number] ("**Counterparty**"),

each individually a "**Party**" and together the "**Parties**."

WHEREAS, the Parties wish to engage in discussions, demonstrations, a pilot deployment, or other business cooperation relating to the AEGIS API Security Gateway software product and related materials (the "**Purpose**"); and

WHEREAS, in the course of the Purpose each Party may disclose to the other certain confidential and proprietary information;

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, the Parties agree as follows:

ARTICLE 1 — DEFINITION OF CONFIDENTIAL INFORMATION

- 1.1 "Confidential Information" means any information disclosed by either Party (the "**Disclosing Party**") to the other (the "**Receiving Party**"), whether orally, in writing, electronically, or by demonstration, that is designated as confidential or that would reasonably be understood to be confidential given its nature or the circumstances of disclosure, including without limitation:

- (a) source code, architecture, technical documentation, diagrams, threat-detection algorithms, risk-scoring models, and other technical materials of AEGIS;
- (b) pricing, licensing terms, product roadmap, test results (including load and penetration testing), and development plans;
- (c) Counterparty's business information provided for purposes of a pilot, including traffic volumes, infrastructure architecture, and customer data; and
- (d) the content of negotiations, presentations, demo access, and screen-share sessions.

ARTICLE 2 — EXCLUSIONS

2.1 Confidential Information does not include information that:

- (a) was publicly available at the time of disclosure through no fault of the Receiving Party;
- (b) becomes publicly available after disclosure through no fault of the Receiving Party;
- (c) was lawfully known to the Receiving Party prior to disclosure, as shown by written records;
- (d) is received from a third party without breach of any confidentiality obligation;
- (e) is independently developed by the Receiving Party without use of the Disclosing Party's Confidential Information; or
- (f) is required to be disclosed by law, regulation, or court order, provided the Receiving Party gives the Disclosing Party prompt written notice (where legally permitted) so it may seek a protective order.

ARTICLE 3 — OBLIGATIONS OF THE RECEIVING PARTY

3.1 Each Party, in its capacity as a Receiving Party, agrees to:

- (a) use the Disclosing Party's Confidential Information solely for the Purpose, and not for developing a competing product or service;
- (b) not disclose Confidential Information to any third party without the Disclosing Party's prior written consent, except to employees or contractors who need it for the Purpose and are bound by confidentiality obligations at least as protective as those in this Agreement;

- (c) protect Confidential Information using at least the same degree of care used to protect its own confidential information of a similar nature, and in no event less than reasonable care;
- (d) not reverse-engineer, decompile, or disassemble any AEGIS software provided or demonstrated in connection with a pilot or demonstration, except to the extent such restriction is prohibited by applicable law; and
- (e) upon the Disclosing Party's written request, return or destroy all materials containing Confidential Information within ten (10) business days and confirm such return or destruction in writing.

ARTICLE 4 — TERM

- 4.1 This Agreement takes effect on the Effective Date and remains in effect for two (2) years unless earlier terminated by either Party upon thirty (30) days' written notice.
- 4.2 The obligations of confidentiality in Article 3 survive for three (3) years from the date of disclosure of the relevant information, regardless of any earlier termination of this Agreement, except that obligations relating to AEGIS source code and technical architecture survive indefinitely until such information falls within an exclusion under Article 2.

ARTICLE 5 — REMEDIES, LIQUIDATED DAMAGES, AND PENALTY

- 5.1 Each Party acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages would be an inadequate remedy, and that the Disclosing Party is entitled to seek injunctive relief in addition to any other remedies available at law or in equity.
- 5.2 In addition to injunctive relief, a Party that breaches Article 3 of this Agreement shall pay the non-breaching Party a penalty (liquidated damages) of EUR 20,000 (twenty thousand euro) per proven breach, payable within ten (10) business days of written demand. This penalty is due regardless of whether the non-breaching Party can demonstrate actual monetary loss, and does not require proof of damages as a precondition to payment.
- 5.3 Payment of the penalty under Section 5.2 does not release the breaching Party from its underlying confidentiality obligations, does not limit or replace the non-breaching Party's right to injunctive relief under Section 5.1, and does not preclude a separate claim for actual damages to the extent they exceed the penalty amount

already paid. The Parties agree that the amount set out in Section 5.2 is a genuine pre-estimate of the harm likely to result from a breach, and not a punitive sum, in order to support enforceability under governing laws that distinguish liquidated damages from a punitive penalty.

- 5.4 *Drafting note: a fixed penalty/liquidated-damages clause is routinely enforceable under civil-law systems (e.g. as a "штраф"/"неустойка"), but common-law courts (e.g. England & Wales, most U.S. states) will strike down such a clause as an unenforceable "penalty" if it is not a genuine pre-estimate of loss and is instead punitive or grossly disproportionate to likely harm. Confirm the amount and its enforceability with counsel in the actual governing jurisdiction before use.*

ARTICLE 6 — GENERAL PROVISIONS

- 6.1 This Agreement is governed by, and construed in accordance with, the laws of [jurisdiction], without regard to its conflict-of-laws principles. Any dispute arising under or in connection with this Agreement shall be resolved in [court / arbitral body].
- 6.2 Nothing in this Agreement obligates either Party to enter into any further agreement, and nothing in this Agreement creates a partnership, joint venture, or agency relationship between the Parties.
- 6.3 This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions and agreements, written or oral, relating to that subject matter.
- 6.4 This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.
- 6.5 No amendment to this Agreement is effective unless made in writing and signed by an authorized representative of each Party.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

AEGIS

Signature

Name: _____

Title: _____

Date: _____

COUNTERPARTY

Signature

Name: _____

Title: _____

Date: _____